

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #07	CCRB Case #: 201800058	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 12/27/2017 12:31 AM	Location of Incident: West 125th Street and Amsterdam Avenue; 26th Precinct stationhouse	18 Mo. SOL 6/27/2019	Precinct: 26		
Date/Time CV Reported Wed, 12/27/2017 5:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/03/2018 11:10 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Sergio Hidalgo	00000	906458	026 PCT
2. POM German Geronimo	11218	943293	026 PCT
3. An officer			026 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vladimir Chacon	00311	963447	026 PCT
2. POM Brian Osullivan	03203	963673	026 PCT
3. POM Marc Weilandics	20394	959363	026 PCT
4. POF Ivis Ayala	26665	941375	026 PCT
5. POM Devin Larkin	05298	931780	026 PCT
6. POM Alula Haileselassie	11630	953943	026 PCT
7. POM Ricky Erdman	11679	941709	026 PCT
8. POM Handoly Ramos	2700	953297	026 PCT
9. POM Eric Hochhauser	28678	957679	026 PCT
10. POM Maxwell Baltzer	15451	956409	026 PCT
11. POM Graig Thompson	27182	927590	026 PCT
12. POM Gadaffi Bartholomew	16428	957363	026 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: At West 125th Street and Amsterdam Avenue in Manhattan, an officer questioned § 87(2)(b)	A . Officer(s) Unidentified
B . An officer	Force: At West 125th Street and Amsterdam Avenue in Manhattan, an officer used physical force against § 87(2)(b)	B . Exonerated
C . An officer	Force: At West 125th Street and Amsterdam Avenue in Manhattan, an officer tightly handcuffed § 87(2)(b)	C . Unfounded
D . An officer	Abuse: At West 125th Street and Amsterdam Avenue in Manhattan, an officer did not obtain medical treatment for § 87(2)(b)	D . Officer(s) Unidentified
E . LT Sergio Hidalgo	Abuse: At the 26th Precinct stationhouse, Lieutenant Sergio Hidalgo did not obtain medical treatment for § 87(2)(b)	E . Unfounded

Officer(s)	Allegation	Investigator Recommendation
F . POM German Geronimo	Discourtesy: At the 26th Precinct stationhouse, Police Officer German Geronimo spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . POM German Geronimo	Off. Language: At the 26th Precinct stationhouse, Police Officer German Geronimo made remarks to § 87(2)(b) based upon her gender.	G . Unsubstantiated

Case Summary

On December 27, 2017, Lieutenant Sergio Hidalgo of the 26th Precinct reported this incident to the Internal Affairs Bureau (IAB) on behalf of § 87(2)(b) who sustained a fracture to her right hand while in police custody.

On December 27, 2017, at approximately 12:31 a.m., § 87(2)(b) was involved in a cab fare dispute at West 125th Street and Amsterdam Avenue in Manhattan. An officer allegedly asked § 87(2)(b) what substance she had (**Allegation A: Abuse of Authority, officer unidentified**).

Officers initiated the handcuffing process minutes later, and an unidentified officer allegedly held and pulled § 87(2)(b)'s right hand (**Allegation B: Force, exonerated**). This action reportedly caused a fracture to § 87(2)(b)'s right pinkie. § 87(2)(b) complained that the handcuffs were too tight, and an unidentified officer loosened them slightly. An unidentified officer allegedly tightened them afterward (**Allegation C: Force, unfounded**).

An unidentified officer placed § 87(2)(b) into an RMP and allegedly ignored her request for medical attention (**Allegation D: Abuse of Authority, officer unidentified**). She was transported to the 26th Precinct stationhouse and brought in front of the desk at approximately 12:40 a.m., where Lieutenant Hidalgo allegedly ignored § 87(2)(b)'s request to be transported to a hospital (**Allegation E: Abuse of Authority, unfounded**). § 87(2)(b) was transported to § 87(2)(b) at approximately 3:15 a.m. and diagnosed with § 87(2)(b).

PO German Geronimo and PO Ivis Ayala of the 26th Precinct were assigned to transport § 87(2)(b) to Manhattan Central Booking. Upon seeing § 87(2)(b) for the first time, PO Geronimo allegedly stated, "Now I gotta deal with you fucking ass bitches. I'd be fucking my wife, but I'm here with you" (**Allegation F: Discourtesy, unsubstantiated; Allegation G: Offensive Language, unsubstantiated**). At an unspecified time, PO Geronimo also told § 87(2)(b) "Shut up, bitch" (**Allegation G: Offensive Language, unsubstantiated**).

Surveillance video footage and stationhouse video were obtained for this incident [01-05 Board Review].

Findings and Recommendations

Allegation A – Abuse of Authority: At 125th Street and Amsterdam Avenue in Manhattan, an officer questioned § 87(2)(b)

§ 87(2)(b) stated that she was involved in a dispute with a cab driver who then stopped at an intersection at which several officers were already present. § 87(2)(b) spoke with a white male officer who had brown hair and stood a few inches shorter than 5'11". This officer told § 87(2)(b) that she was aggressive and high on drugs. She informed the officer that she was not high, though she acknowledged during her CCRB interview that she had smoked one marijuana cigarette about an hour prior to the incident. She denied consuming alcohol or any other drugs.

§ 87(2)(b) reported that she stepped out of the vehicle to prove that she was not intoxicated. She then spoke with the officers in a normal conversational tone. A white male officer, who was

shorter than 5'11" and had light brown hair, asked § 87(2)(b) "What you got? What substance?" § 87(2)(b) later attributed these questions to a black male officer who she could not otherwise describe [06 Board Review].

§ 87(2)(b) made no mention of the alleged inquiry in the two statements she provided to IAB, though she was not directly questioned on the topic [07-08 Board Review].

The cab driver, § 87(2)(b) provided a phone statement in Spanish. She stated that § 87(2)(b) was uncooperative with officers as she protested her arrest and kicked at them. She made no mention of an officer asking § 87(2)(b) about any substances [09 Board Review].

PO Hochhauser and PO Baltzer acknowledged that they were speaking to § 87(2)(b) at the time she exited the cab. Both officers testified that § 87(2)(b) was yelling and striking the cab's door as she refused to pay the fare. Based on these behaviors, PO Hochhauser suspected that § 87(2)(b) could have been under the influence of an unknown substance. PO Baltzer did not remember whether he held this belief at the time of the incident. Regardless, both officers denied asking § 87(2)(b) what substance she may have been on or any questions about drugs. Neither PO Hochhauser nor PO Baltzer recalled whether another officer questioned § 87(2)(b) regarding drugs [10-11 Board Review].

The arresting officer, PO Brian O'Sullivan, stated that he stood directly behind PO Hochhauser and PO Baltzer as they spoke with § 87(2)(b). He corroborated their assertions that she yelled and struck the cab's door but denied that any officer asked § 87(2)(b) about drugs [12 Board Review].

PO Gadaffi Bartholomew, PO Graig Thompson, and PO Alula Haileselassie were the only black male officers on scene. Each of these officers testified to observing § 87(2)(b) screaming, yelling, and acting irrationally, and they stated that these observations led them to the belief that she may have been intoxicated. However, PO Bartholomew and PO Thompson denied speaking with § 87(2)(b) at any point. Similarly, PO Haileselassie stated that he stood 10 to 15 feet from § 87(2)(b) as she spoke with PO Hochhauser and PO Baltzer, and he made no mention of ever speaking with her. PO Bartholomew, PO Thompson, and PO Haileselassie unanimously denied asking § 87(2)(b) about drugs or being aware of another officer having done so [13-15 Board Review].

TRI worksheets prepared by PO Hochhauser, PO Baltzer, PO O'Sullivan, and PO Marc Weilandics, who was partnered with PO O'Sullivan, indicated that § 87(2)(b) was suspected of having used drugs. Otherwise, the officers testified that they reported this because of § 87(2)(b)'s aggressive behavior [16-19 Board Review].

MOS photos for PO Hochhauser, PO Baltzer, and PO O'Sullivan revealed that they each match § 87(2)(b)'s first description of the subject officer. According to the MOS photo system, PO Weilandics is a white male who stands 6'1" tall and has blond hair. It was therefore determined that he does not match either of § 87(2)(b)'s descriptions § 87(2)(g) [20-22 Board Review].

§ 87(2)(b) was arrested and charged with § 87(2)(b)

No officer testified to suspecting § 87(2)(b) of a crime other than § 87(2)(b) while at the scene [10-14, 23-24 Board Review].

Security camera footage did not capture any black male officer speaking with § 87(2)(b) § 87(2)(b) the video contained no audio § 87(2)(g) [01 Board Review].

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B – Force: At West 125th Street and Amsterdam Avenue in Manhattan, an officer used physical force against § 87(2)(b)

§ 87(2)(b) stated that an unidentified officer informed her that she was under arrest. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b). Officers turned her around and pulled her arms behind her back. She alleged that four to five officers, including a 5'11" white male with light brown hair who later transported her to the stationhouse, pulled her right hand during the handcuffing process. § 87(2)(b) resisted by pulling her arms and hands toward the front of her body. The above-described white male officer continued to hold and squeeze § 87(2)(b)'s right hand and, at some point during the handcuffing process, caused a fracture to § 87(2)(b)'s right pinkie. § 87(2)(b) stated that this may have occurred after she was placed on the ground. She was otherwise unable to provide any additional information about how she sustained this injury.

§ 87(2)(b) stated that, while still at the scene, she alerted unspecified officers that her hand was broken and that she needed to visit a hospital. § 87(2)(b) was unable to provide additional detail regarding this request aside from adding that she kicked the window of the RMP as she asked one of the transporting officers to take her to a hospital. She was unable to differentiate between the two transporting officers as she did not see one of them [06 Board Review].

§ 87(2)(b)'s statements to IAB regarding the handcuffing process § 87(2)(g)

§ 87(2)(b) added that the injury may have been preexisting as she had previously "hit" that hand a month prior to the incident and did not seek medical attention. In describing the injury sustained a month earlier, she stated, "It was swollen, and then it was perfect." § 87(2)(b) revealed that her hands fracture easily but did not supply a reason. § 87(2)(b)

§ 87(2)(b) also reported that she was taken to the ground. She described this process as both being “placed” on the ground and “pushed” to the ground [07-08 Board Review].

In both her IAB and CCRB interviews, § 87(2)(b) mentioned requesting medical attention from a “chief” at the desk upon entering the stationhouse. She clarified in her CCRB testimony that this officer responded, “If you don’t shut up, I won’t be talking to you.” He did not otherwise respond to her request for medical attention. § 87(2)(b) consistently acknowledged that she punched the cell wall one time with her right hand. In her CCRB interview, she stated that she likely caused an additional injury to her right hand by doing this, though she maintained that her hand was initially injured during the handcuffing process. After striking the cell wall, § 87(2)(b) went to sleep [06-08 Board Review].

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) stated that § 87(2)(b) protested her arrest and kicked at officers. Officers grabbed § 87(2)(b) to control her, but § 87(2)(b) did not see any officer specifically grab or pull § 87(2)(b) s hands. According to § 87(2)(b) § 87(2)(b) was never taken to the ground. § 87(2)(b) did not hear § 87(2)(b) mention an injury or request medical attention [09 Board Review].

PO Hochhauser acknowledged participating in the handcuffing process by holding and controlling § 87(2)(b) s arm. He did not otherwise remember what actions he took or which officers assisted. PO Hochhauser denied taking or observing any other officer take actions which would have been inappropriate for the purpose of handcuffing [10 Board Review].

PO Baltzer stated that he grabbed § 87(2)(b) s arm and placed it behind her back after she exited the cab. He initially testified that she either turned around or was turned around by officers, but there was no struggle. He did not recall any issues encountered during the handcuffing process, which lasted only a couple of seconds. He denied squeezing or pulling on § 87(2)(b) s hands or taking any actions which would have been inappropriate for the purpose of handcuffing [11 Board Review].

PO O’Sullivan, PO Bartholomew, PO Thompson, and PO Haileselassie denied physically participating in the handcuffing process. Each testified to observing § 87(2)(b) resist PO Hochhauser and PO Baltzer by flailing her arms and pushing away as they attempted to handcuff

her, and that the officers used no force aside from holding her arms or hands to control her [12-15 Board Review].

All of the officers interviewed denied that § 87(2)(b) requested medical attention or complained of pain or an injury during or after the handcuffing process. PO Hochhauser and PO Baltzer acknowledged transporting § 87(2)(b) to the stationhouse but denied that she requested medical attention or complained of an injury during transport or while at the stationhouse. The officers unanimously stated that she was never taken to the ground [10-15 Board Review].

Lieutenant Hidalgo testified that he was at the desk when § 87(2)(b) arrived at the stationhouse at approximately 12:40 a.m. He observed no injuries to her person and noted in the Command Log that her physical and mental conditions were apparently normal. Aside from stating that she was thrown to the ground by officers, § 87(2)(b) made no additional allegations. She did not complain of an injury or pain to her hand, and she did not request medical attention.

According to Lt. Hidalgo, § 87(2)(b) was placed into a cell, at which point she began striking the cement cell walls and the metal bars of the cell door with open palms as well as closed fists. She continued behaving in this manner for over an hour. Lieutenant Hidalgo instructed her to stop, but § 87(2)(b) did not obey these commands. Rather, she replied, “Get out of here,” and “I’m not going to talk to you. You’re a spic.” At approximately 2:45 a.m., § 87(2)(b) informed Lieutenant Hidalgo of pain to her hand but did not specifically request EMS. Lt. Hidalgo then called an ambulance. He denied that § 87(2)(b) complained of pain, an injury, or requested medical attention at any point prior to this. § 87(2)(b) was transported to § 87(2)(b) at 3:15 a.m. as per Lieutenant Hidalgo’s Command Log entries [24-25 Board Review].



2018-04-17_16-57-40.mp4

Security camera footage from the scene of § 87(2)(b)'s arrest depicts several officers attempting to handcuff § 87(2)(b) as she moved her body back and forth. Due to the poor quality of the video, the officers were unable to consistently identify which officer initiated the handcuffing process, and the fine details of each officer’s actions are unclear. However, there is no evidence that § 87(2)(b) was taken to the ground at any point [26 Board Review].



201800058_20180209_1627_DM.mp4



201800058_20180209_1634_DM.mp4



201800058_20180209_1638_DM.mp4



201800058_20180209_1657_DM.mp4

§ 87(2)(g)

As such, it is recommended that **allegation D** be closed as **officer unidentified**.

§ 87(2)(g)

and it is recommended that **allegation E** be closed as **unfounded**.

Allegation C – Force: At West 125th Street and Amsterdam Avenue in Manhattan, an officer tightly handcuffed § 87(2)(b)

§ 87(2)(b) testified that she complained to officers that her handcuffs were too tight. One officer ignored this complaint, but another loosened the handcuffs slightly. After the handcuffs were loosened, a black male officer came and tightened the handcuffs again. § 87(2)(b) did not see this officer and was unable to provide any additional descriptive details for him [06 Board Review].

There is no mention of this allegation in § 87(2)(b)'s IAB interviews. § 87(2)(a) PHL § 18(6) made no mention of an officer having tightened § 87(2)(b)'s handcuffs [09 Board Review].

According to the roll call, only three black male officers were working on the night of the incident: PO Haileselassie, PO Thompson, and PO Bartholomew. All three acknowledged responding to the incident but denied having any physical interaction with § 87(2)(b). The officers unanimously denied observing or learning that § 87(2)(b) attempted to escape her

handcuffs at any point. All of the officers interviewed denied adjusting her handcuffs, seeing any officer do so, or hearing § 87(2)(b) complain about the tightness or an adjustment of her handcuffs [10-15 Board Review].

While no officer was able to say whose handcuffs were placed on § 87(2)(b) PO Baltzer's memo book noted that the handcuffs were "double-locked." PO Baltzer explained that double-locking secures the locking mechanism in place and ensures that the handcuffs cannot be inadvertently adjusted for any reason [10-15, 29 Board Review].



2018-04-17_16-57-40.mp4

Surveillance video depicts three black male officers standing at the edge of the sidewalk as § 87(2)(b) is handcuffed by other officers in the street. At the 1:50 minute mark, the middle of the three steps toward § 87(2)(b) though he is blocked by several other officers who are struggling with § 87(2)(b). He never appears to get within an arm's reach of § 87(2)(b). § 87(2)(b) is then escorted to a marked SUV without delay. No officer reaches behind her or toward her handcuffs, and there is no pause to suggest that the alleged adjustment was made. By the time § 87(2)(b) is placed into the RMP at the end of the video, two of the black male officers are still on the sidewalk, and the other is more than a car length away near the cab [26 Board Review].

§ 87(2)(b) was unable to provide a detailed description of the officer who allegedly tightened her handcuffs, and she made no mention of this allegation in her IAB interviews. This allegation was universally denied by officers, and their testimonies were supported by the video which showed that none of the three black male officers ever got close enough to tighten § 87(2)(b)'s handcuffs. § 87(2)(g) It is therefore recommended that **allegation C** be closed as **unfounded**.

Allegation F – Discourtesy: At the 26th Precinct stationhouse, Police Officer German Geronimo spoke discourteously to § 87(2)(b)

Allegation G – Offensive Language: At the 26th Precinct stationhouse, Police Officer German Geronimo made remarks to § 87(2)(b) based upon her gender.

§ 87(2)(b) stated that officers matching the physical descriptions of PO Geronimo and PO Ayala were assigned to transport her to Manhattan Central Booking. Upon seeing § 87(2)(b) for the first time, PO Geronimo allegedly stated, "Now I gotta deal with you fuckin' ass bitches. I'd be fucking my wife, but I'm here with you." § 87(2)(b) was the only prisoner being transported at that time. At an unspecified time, PO Geronimo said to § 87(2)(b) "Shut up, bitch" [06 Board Review].

In her IAB interviews, § 87(2)(b) stated that unspecified officers told her such things as, "I don't feel like it," "Shut the fuck up," "Shut the fuck up, bitch," and, "I wish I was home" [07-08 Board Review].

PO Geronimo acknowledged that he informed § 87(2)(b) that she was being transported to Manhattan Central Booking. He denied making any of the abovementioned statements to § 87(2)(b) or hearing any officer make such statements. He did not mention anything to § 87(2)(b) about a delay or a desire to be home. PO Geronimo did not remember whether he used any profanity toward § 87(2)(b). He denied making any remarks based upon her gender [30 Board Review].

PO Ayala denied hearing PO Geronimo make any of the above-described statements to § 87(2)(b). She stated that PO Geronimo did not use the words “fuck” or “bitch” toward § 87(2)(b) at any point, nor did he make any comments based on her gender. § 87(2)(b) did not complain that any such statements were made to her [31 Board Review].

Memo book entries prepared by PO Geronimo and PO Ayala revealed that both the transport and their return to the stationhouse occurred during their normally scheduled tour. Neither incurred any overtime for the transport assignment [32-33 Board Review].

All of the other officers interviewed for this case, save for PO O’Sullivan, had ended their tours by the time § 87(2)(b) was transported to Manhattan Central Booking. PO O’Sullivan stated that he was not present when she was transported and denied hearing any of the alleged statements [10-15 Board Review].

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that
allegations F and G be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [34 Board Review].
- Lieutenant Hidalgo has been a member of service for 24 years and has been a subject in one prior CCRB complaint and two prior allegations, none of which were substantiated.
§ 87(2)(g)
§ 87(2)(g)
- PO Geronimo has been a member of the service for 11 years and has been a subject in two prior CCRB complaints and four prior allegations, none of which were substantiated.
§ 87(2)(g)
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- A Notice of Claim inquiry was submitted to the NYC Comptroller’s Office on April 18, 2018. Its results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: 7

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date